

FILED

KING COUNTY, WASHINGTON

DEC 05 2008

SUPERIOR COURT CLERK
BY GLENNA J. JONES
DEPUTY

IN THE SUPERIOR COURT FOR THE STATE OF WASHINGTON
IN AND FOR THE COUNTY OF KING

Melvina C. Roberson

Plaintiff/Petitioner,

vs.

Zachariah Bennett

Defendant/Respondent.

NO. 08-3-03956-4

☒ SEA
[] KNT

Letter from Mr. Bennett

is attached.

ADAMS COUNTY DETENTION FACILITY

~~150 North 19th Avenue~~

PO Box 5001

Brighton, CO 80601-5001

303-654-1850

11/09/08

Your Honor,

In the matter of the custody of Timothy Edward Bennett II, I feel at this time it is in his best interest to remain where he is. I am currently incarcerated, and his mother is in drug-rehab for her meth addiction. Right now, Timothy resides in a stable, loving environment that he is well adjusted to. Until such time as Kelly Jean Bennett, and I, Zachariah Jeremiah Bennett both have stable lives and are in agreement as to Timothy's best interest I feel the court should continue with its original ruling to grant custody to Melvina Roberson. At this time it is uncertain if there will be a divorce between Kelly and I in the near future that will entail a custody battle. I do not wish a divorce, but have been informed by my mother that this is Kelly's wish. Kelly has sent me letters leading me to believe, without directly stating it, that she wishes to stay together. This, coupled with the fact that she has only a month sobriety after several years of meth use, tells me she is not yet ready to make decisions about our son that can affect him for life. I would ask the court to keep custody with Melvina Roberson until such time as Kelly and I can both be present in court to state our respective views on the matter. Also, I ask the court to lower my child-support payment to \$75/month back-dated to 8/16/08 when I was incarcerated as I have had no income. I want my position on this matter to be very clear to the court. I believe it would be ideal for Timothy to be raised by Kelly and I as his biological parents, who both love him dearly. Yet at THIS TIME, Kelly is in treatment, I am in jail, and the status of our marriage is unclear. I do not feel it is safe or healthy for my son to be "bounced around" when he has a safe, stable, and healthy environment where he is. I believe this matter has to be viewed from the best interest of Timothy. I was "painted" as a "bad person" in the beginning of this case, and I want it known that I have NEVER abused my son in ANY way. I called my mother and had her remove Timothy from a situation that was not healthy for him, and I didn't fight the custody matter because I wanted what was in his best interest. I believe the court made the same ruling I would have in its position, with the facts it had to go on. I also ask the court to remove the protection order that was placed against me, as I am NO THREAT to my son in any way. I have no problem with orders remaining in effect so that Timothy cannot be removed from WA state by Kelly or I, or anyone except his custodian for that matter. (Melvina Roberson). I have passed a 6-week parenting course, and am taking another 6-week parenting course at this time so that I can be a better father once my legal obligation here is completed and I return home to WA State. Please feel free to contact me at the above address for any reason at all. Thank you and God bless. ZB

Signal,

Zachariah J. Bennett
Zachariah J. Bennett
#08-10559